Amendment of section 75.

139. In section 75 of the Central Goods and Services Tax Act,—

(*a*) in sub-section (1), after the word and figures "section 74", the words, brackets, figures and letter "or sub-sections (2) and (7) of section 74A" shall be inserted;

(*b*) after sub-section (2), the following sub-section shall be inserted, namely:—

"(2A) Where any Appellate Authority or Appellate Tribunal or court concludes that the penalty under clause (*ii*) of sub-section (5) of section 74A is not sustainable for the reason that the charges of fraud or any wilful-misstatement or suppression of facts to evade tax has not been established against the person to whom the notice was issued, the penalty shall be payable by such person, under clause (*i*) of sub-section (5) of section 74A.";

(*c*) for sub-section (10), the following sub-section shall be substituted, namely:—

"(10) The adjudication proceedings shall be deemed to be concluded, if the order is not issued within the period specified in sub-section (10) of section 73 or in sub-section (10) of section 74 or in sub-section (7) of section 74A.";

(*d*) in sub-section (11), after the word and figures "section 74", the words, brackets, figures and letter "or sub-section (7) of section 74A" shall be inserted;

(*e*) in sub-section (12), after the words and figures "section 73 or section 74", the words, figures and letter "or section 74 A" shall be inserted;

(*f*) in sub-section (13), after the words and figures "section 73 or section 74", the words, figures and letter "or section 74 A" shall be inserted.